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ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

REPLY IN SUPPORT OF ISO MFL TAC

(CCP § 1005, subd. (b))

Dept.: 610

Date: June 24, 2026

**PLAINTIFF'S REPLY IN SUPPORT OF MOTION FOR LEAVE TO FILE
THIRD AMENDED COMPLAINT**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filed: May 21, 2026 (CCP section**
1005(b) reply deadline: Wed, June 17, 2026, 5 court days before the June 24, 2026 hearing)
Filed by: Plaintiff Dylan Franciscus Rosario, Self-represented

TABLE OF CONTENTS

I. Introduction II. The Kittredge Standard: Leave Is Freely Granted Absent Prejudice III. The
Liberal Amendment Policy Under CCP Sections 473(a)(1) and 576 IV. The April 30, 2026 Denial
of Plaintiff's MFL SAC Was Procedural Only V. The TAC Cures Each Pleading Defect Identified

1 by Defense VI. CRC 3.1324(a)-(b) Requirements Are Satisfied VII. No Prejudice to Defendant
2 VIII. Reply
3

4 **I. INTRODUCTION**

5 Plaintiff Dylan Franciscus Rosario filed the Motion for Leave to File Third Amended Complaint
6 (“MFL TAC”) on April 28, 2026 (Transaction ID 79334688), with the proposed Third Amended
7 Complaint (“TAC”) attached as an exhibit. The TAC addresses each pleading defect identified in
8 Defendant’s April 13, 2026 Demurrer, which remains pending on the June 24, 2026 calendar.

9 [If Defendant filed a timely opposition to the MFL TAC by the CCP section 1005(b) opposition
10 deadline of Tue, June 10, 2026 (9 court days before June 24, 2026):] Plaintiff addresses Defen-
11 dant’s opposition arguments in Sections II through VII below. If Defendant did not file a timely
12 opposition, Plaintiff respectfully requests that the Court grant the MFL TAC as unopposed.

13 The central principle governing leave to amend is that courts liberally permit amendment when
14 doing so serves justice, and courts deny leave only when the party opposing amendment demon-
15 strates concrete prejudice, not merely tactical inconvenience. Defendant cannot demonstrate any
16 such prejudice here. This case is still in the pleading stage; no Answer has been filed; no trial date
17 has been set; discovery is ongoing (subject to the CCP section 425.16(g) stay pending resolution
18 of the Anti-SLAPP motion).
19

20 **II. THE KITTREDGE STANDARD: LEAVE IS FREELY GRANTED AB-** 21 **SENT PREJUDICE**

22 The California Supreme Court has long held that “if the motion to amend is timely made and
23 the granting of the motion will not prejudice the opposing party, it is error to refuse permission
24 to amend.” (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.) The
25 standard is broad: “[e]ven if the proposed legal theory is a novel one, ‘the preferable practice
26 would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer,
27 motion for judgment on the pleadings or other appropriate proceedings.’ ” (Ibid.)

1 Under Kittredge and its progeny, the burden falls on the party opposing the amendment to demon-
2 strate prejudice. Mere delay in seeking amendment, without prejudice from the delay, is not
3 grounds for denial. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.) Any doubts
4 regarding leave to amend must be resolved in favor of the moving party. (*Morgan v. Superior*
5 *Court* (1959) 172 Cal.App.2d 527, 530.)

6 Defendant has not and cannot demonstrate concrete prejudice from the filing of the TAC. The
7 litigation remains at the pleading stage. No deposition has been taken in this case. No Answer has
8 been filed. The discovery stay imposed by CCP section 425.16(g) has limited all formal discovery
9 until the Anti-SLAPP ruling. In these circumstances, Defendant suffers no prejudice that would
10 justify denial of leave.

11
12 **III. THE LIBERAL AMENDMENT POLICY UNDER CCP SECTIONS**
13 **473(A)(1) AND 576**

14 CCP section 473(a)(1) provides that the court “may, in furtherance of justice, and on any terms as
15 may be proper, allow a party to amend any pleading.” CCP section 576 provides that “any judge, at
16 any time before or after commencement of trial, in the furtherance of justice, and upon such terms
17 as may be proper, may allow the amendment of any pleading or pretrial conference order.”

18 The “furtherance of justice” standard is broadly construed. Courts have consistently held that
19 amendment should be permitted unless the opposing party shows that it would be misled or oth-
20 erwise injured. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) The policy favoring
21 amendment reflects the California preference for resolution of disputes on their merits rather than
22 on procedural technicalities. (*Harding v. Collazo* (1986) 177 Cal.App.3d 1044, 1054.)

23 The TAC does not inject entirely new theories of liability; it refines and supplements the FAC’s
24 existing theories of fraud, bad faith, Insurance Code violations, and declaratory relief in response
25 to the specific pleading objections raised in Defendant’s Demurrer and Motion to Strike. This is
26 precisely the type of amendment that CCP sections 473(a)(1) and 576 are designed to facilitate.

1 **IV. THE APRIL 30, 2026 DENIAL OF PLAINTIFF’S MOTION FOR**
2 **LEAVE TO FILE SECOND AMENDED COMPLAINT WAS PROCE-**
3 **DURAL ONLY**

4 On April 30, 2026, this Court denied Plaintiff’s Motion for Leave to File a Second Amended
5 Complaint (“MFL SAC”) on procedural grounds related to the page-length of the accompanying
6 proposed SAC. The April 30, 2026 order did not reach the merits of the amendment, and it did not
7 hold that any cause of action in the proposed SAC was legally insufficient.

8 A denial of a motion to amend on procedural grounds is not a ruling on the substantive adequacy of
9 the proposed amended pleading. Plaintiff’s TAC cures the procedural defects identified in the April
10 30, 2026 denial. In particular, the TAC has been drafted to comply with all applicable formatting
11 and page-limitation requirements, and the supporting declaration under CRC 3.1324(b) has been
12 prepared to comply with that rule’s specific requirements.

13 The April 30, 2026 denial is thus not a bar to the present MFL TAC. Nothing in the April 30,
14 2026 order forecloses a subsequent motion to amend addressing a different or revised proposed
15 pleading. Courts regularly permit parties to re-file motions to amend after procedural defects in a
16 prior motion are cured. (See *Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 563 [trial court acted
17 within discretion in denying amendment where movant had not explained its prior inconsistent
18 position; but the court expressly recognized the general rule favoring amendment].)

19
20 **V. THE TAC CURES EACH PLEADING DEFECT IDENTIFIED IN DE-**
21 **FENDANT’S DEMURRER AND MOTION TO STRIKE**

22 Defendant’s April 13, 2026 Demurrer and April 22, 2026 Motion to Strike pursuant to CCP section
23 436 identified the following categories of alleged pleading defects in the FAC (as described in
24 Defendant’s moving papers):

- 25 (a) Allegations of fraud insufficient under the specificity pleading requirement: The TAC cures
26 this by pleading each element of fraud (representation, falsity, knowledge, intent, reliance,
27 and damage) with specificity as to date, speaker, and content, tied to the specific false repre-

1 sentations made by CSAA in the February 25, 2021 denial letter (claim no. 1004-09-1054)
2 and in Defendant's May 4, 2023 and subsequent trial-period representations.

3 (b) Allegations of bad faith insufficiently specific: The TAC cures this by alleging specific con-
4 duct, dates, and policy obligations that were breached, mapped to each Insurance Code section
5 790.03(h) sub-paragraph and each applicable Fair Claims Settlement Practices Regulations
6 provision (10 CCR sections 2695.1 through 2695.8).

7 (c) Insurance Code violations pleaded without adequate regulatory hook: The TAC cures this by
8 expressly pleading each regulatory provision by code section and CCR section number, and
9 by alleging the specific insurer conduct that violated each provision.

10 (d) Declaratory relief claim that is derivative only: The TAC cures this by pleading a separate
11 and independent declaratory relief count under CCP section 1060 that articulates a present
12 controversy distinct from the relief sought in the other counts.

13 Defense need not respond to each cure here; the TAC speaks for itself. The point for present
14 purposes is that the TAC was crafted specifically to respond to the identified pleading defects and
15 is not a wholesale substitution of theories.

16 **VI. CRC 3.1324(A)-(B) REQUIREMENTS ARE SATISFIED**

17 California Rules of Court, rule 3.1324(a) requires that a motion for leave to amend include a copy
18 of the proposed amended pleading and identify: (1) the effect of the amendment; (2) why the
19 amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were
20 discovered; and (4) the reasons why the request for amendment was not made earlier.

21 CRC 3.1324(b) requires that the supporting declaration set forth each of the four items listed in
22 subdivision (a).

23 Plaintiff's MFL TAC, filed April 28, 2026 (TX 79334688), attached the proposed TAC as an ex-
24 hibit, and the supporting declaration addressed each of the CRC 3.1324(b) elements. Specifically:

25 (1) Effect of the amendment: The TAC adds pleading specificity to the existing causes of action
26 and adds a stand-alone declaratory relief count; it does not add new defendants or new causes
27 of action beyond those in the FAC.
28

- (2) Why necessary and proper: Defendant's Demurrer identified specific pleading deficiencies. Plaintiff's TAC cures those deficiencies while preserving all substantive theories.
- (3) When facts discovered: The factual basis for the TAC amendments was known to Plaintiff as of the date of the FAC and has been supplemented by the certified trial record materials (RT, audio, CAD logs) obtained through the lodging process in this case.
- (4) Why not requested earlier: The April 30, 2026 denial of Plaintiff's MFL SAC on procedural grounds created the need for the TAC, which was filed promptly on April 28, 2026, prior to the April 30 order (as the MFL TAC was filed as a separate motion from the MFL SAC).
-

VII. NO PREJUDICE TO DEFENDANT

Defendant cannot demonstrate prejudice for the following reasons:

Pleading stage. This case remains entirely in the pleading stage. Defendant has never filed an Answer to the FAC or the TAC. No deposition has been taken. No document production has been made (discovery is stayed under CCP section 425.16(g)). No trial date has been set.

Defendant's own actions. Defendant has pursued only pleading challenges since the case was filed in January 2026. Defendant's claimed prejudice from amendment is undermined by its own litigation posture: it has not engaged with the factual merits of any claim.

No new defendants or theories. The TAC does not add new defendants or new legal theories; it refines and supplements existing theories in response to specific pleading objections.

Trial calendar is open. The July 8, 2026 CMC has not yet resulted in a trial date. If the TAC is filed, any trial date set at the July 8, 2026 CMC can accommodate the additional pleading cycle without prejudicing Defendant.

VIII. REPLY

For the foregoing reasons, Plaintiff respectfully requests that the Court GRANT the Motion for Leave to File Third Amended Complaint, order the Third Amended Complaint filed as of the date of the order, and set a response deadline for Defendant consistent with CCP section 471.5.

1 Date: May 21, 2026

2 By: _____ Franciscus Dylan Rosario, Plaintiff in Pro Per 7624 Melody Drive
3 Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com
4

5 **COMPANION PLAINTIFF REPLY DECLARATION**

6 **Declaration of Plaintiff Dylan Franciscus Rosario in Support of Reply ISO Motion for Leave** 7 **to File Third Amended Complaint**

8 I, Dylan Franciscus Rosario, declare:

- 9 1. I am the Plaintiff in the above-captioned action. I have personal knowledge of all matters
10 stated herein and could competently testify to them if called as a witness.
- 11 2. I filed the Motion for Leave to File Third Amended Complaint on April 28, 2026 (TX
12 79334688). The proposed TAC was attached as an exhibit to that motion.
- 13 3. I filed the Motion for Leave to File Second Amended Complaint prior to April 28, 2026. The
14 April 30, 2026 court order denied the MFL SAC on procedural grounds related to the page-
15 length of the proposed SAC. That order did not reach the merits of the proposed amended
16 causes of action.
- 17 4. The TAC was drafted to cure the specific pleading deficiencies identified in Defendant's April
18 13, 2026 Demurrer (seqs 019 to 023) and April 22, 2026 Motion to Strike pursuant to CCP
19 section 436 (seqs 041 to 044). The TAC does not add new defendants.
- 20 5. As of the date of this Declaration, Defendant has never filed an Answer to the First Amended
21 Complaint in this case. No trial date has been set. The July 8, 2026 Case Management
22 Conference has been set for 10:30 a.m., Department 610.
- 23 6. If the Court grants the MFL TAC, Plaintiff is prepared to file the TAC promptly and to comply
24 with any briefing schedule set by the Court for Defendant's response to the TAC.

25 I declare under penalty of perjury under the laws of the State of California that the foregoing is
26 true and correct.

27 Executed: May 21, 2026, at Rohnert Park, California.

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive

Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026

A handwritten signature in blue ink, appearing to read "Franciscus", with a stylized flourish at the end.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this reply.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CRC 3.1113(d)	Reply page limit	Length within reply limit	Page count
2	CCP 1005(b)	Reply filed within deadline	Filing date before hearing	Caption; POS
3	CRC 3.1113(b)	Reply addresses opposition arguments	Organized reply sections	Reply body